

APPEAL BRIEF – No. ZBA2026-0001 / BA2026-001 / ZA2026-0024

Before the Bernalillo County Commission

Property: **9600 2nd Street NW, Bernalillo County, New Mexico 87114**

Appellant: Pat Hauser, on behalf of the Maria-Diers Neighborhood Association and the Regional and Corridor Appellant Coalition.

The Coalition comprises of all past and current petition signers supporting the merits of the appeals, including signers who together own at least 20% of the land within 100 feet of the subject property (excluding right-of-way), together with additional appellant signers within the 500-foot standing radius.

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STATEMENT REGARDING SCOPE AND PURPOSE OF THIS APPEAL

This appeal challenges the Planning Commission's July 1, 2026, decision denying Appellant's appeal and approving a conditional use permit for a 60,000-square-foot, high-volume multi-use complex at 9600 2nd Street NW on the constrained Alameda/2nd Street corridor and in a constrained Regional Area, based on procedural due process violations, legal error, and the absence of substantial evidence required under Section 24.

Before addressing the merits, Appellants state plainly what this appeal is, and is not, about. This appeal is a neutral, clear, evidence-based land-use challenge grounded exclusively in traffic engineering standards, procedural due process violations, legal and substantial errors, and the mandatory findings required by Section 24 of the Bernalillo County Zoning Ordinance. It does not challenge, and has never challenged, the Applicant's right to build a house of worship, the religious character of the proposed use, or the presence of a mosque in this community.

Appellants are aware that this proceeding has attracted public attention from individuals and groups whose interest in the property may be motivated by opposition to the Applicant's religious identity rather than by the clear traffic, safety, and procedural record at issue here. Appellants do not join, endorse, or rely on any such anti-religious sentiment, and nothing in this brief should be read as adopting or accommodating it.

Appellants expressly deny any argument, inference, or relief that would treat this Applicant differently than a secular applicant proposing a comparable high-volume use on this same corridor.

The relief Appellants seek is reversal or remand, a project-specific Traffic Impact Analysis at the conditional-use stage, corridor-level study, and neutral, applicable ordinance reforms. That is the same relief Appellants would seek against any applicant, religious or secular, which sought to build a 60,000-gross-square-foot, high-volume assembly complex on this same constrained corridor without a traffic study and without the evidentiary record Section 24 requires. Appellants' position been, that neutral traffic-safety and procedural standards must be applied evenhandedly to every applicant. That principle protects religious institutions as much as it constrains them, and it is the only basis on which this appeal is brought.

I. INTRODUCTION

This brief explains why, for a high-volume, corridor-critical project like this mosque and multi-use complex, a TIA should not be deferred procedurally or legally to the building-permit stage. It should be completed at the conditional use / land-use approval stage because that is when the County decides whether the high-volume use is appropriate at all.

This appeal challenges the Planning Commission's July 1, 2026, decision denying Appellant's appeal and approving a conditional use permit for a 60,000-square-foot, high-volume multi-use complex at 9600 2nd Street NW on the constrained Alameda / Second Street corridor and Regional Area. It also challenges the ZA's initial approval of the land-use permit prior to the BOA approval. Appellant seeks reversal or remand because the permit was approved without a project-specific Traffic Impact Analysis or any layperson traffic study, without current corridor-level data, and without the substantial evidence required by Appendix A, Section 24 of the Bernalillo County Zoning Ordinance.

Under the County's own ordinances, the applicant bore the burden to demonstrate that the site can be developed without undue traffic congestion or hazards and that the use will not adversely affect the neighborhood or conflict with the Rural North Valley character. Instead, the record contains no TIA, no quantified assessment of trip generation or population transfer, and no current analysis of a corridor already documented as congested and constrained. The decision relied on unwritten practice and deferral to building-permit review, rather than on adopted standards that require traffic safety to be proven at the conditional-use stage.

Director Hamm's caution to the Board that requiring a TIA here could expose the County to RLUIPA liability was legally misplaced. RLUIPA does not exempt religious institutions from neutral, applicable traffic and safety standards; it forbids treating them on less than equal terms with comparable secular assemblies.

Applying Section 24's neutral traffic-safety findings to this project does not violate RLUIPA — but selectively relaxes them for a religious applicant while enforcing them against comparable secular ones would. The RLUIPA argument is developed in full in Section IV.D below.

This pattern recurs throughout the record: County officials offer assurances that traffic and safety concerns can be “worked with” at building-permit or future-coordination stages, but those assurances are never translated into current, project-specific traffic impact evidence or enforceable conditions, and therefore cannot satisfy Section 24's requirement that substantial evidence support the traffic-safety finding at the time the conditional use is approved.

Appellant asks the Board of County Commissioners to reverse or remand this approval, require a TIA and corridor analysis before the conditional-use decision, and adopt neutral, corridor-based protections including a temporary moratorium and ordinance amendments so that future high-volume institutional and commercial uses on this failing corridor and regional area are evaluated on a complete record and under clear, written rules.

Background: Standard TIA guidelines say "consider TIA" at modest trip thresholds. Using only the Applicant's own stated attendance figures and published ITE occupancy rates by activity type (worship, youth-program drop-off, and recreation), the record-based trip exhibit shows hundreds of daily trips and 560 trips on a single Friday. The corridor is already constrained: the only traffic study in the record, the 2020 Murphy Express Traffic Study (Packet Pg. 1407–1426), projected a PM peak-hour subtotal of 168 trips (86 entering + 82 exiting per the trip generation table at Packet Pg. 1416) from a single 12-pump gas station and documented Level of Service F on the westbound Alameda through-movement at the Alameda / 4th Street signalized intersection under 2020 BUILD conditions (Packet Pg. 1417). Deferral only addresses site-level tweaks, not the suitability of the use.

II. STATEMENT OF FACTS

A. Property and Proposed Use

The subject property is located at 9600 2nd Street NW, Bernalillo County, New Mexico, comprising 3.87 acres zoned A-1. The Applicant, Albuquerque Islamic Center / Prestige Custom Design LLC (agent: Joseph Tahat), sought a conditional use permit for a multi-use complex including a worship hall, basketball and recreational facility, and office complex. During deliberations, the Board itself imposed a condition capping the project at a maximum of 60,000 gross square feet — a High-Volume Use Complex.

Traffic Impact and Weekly Trip Generation (Record-Based Estimates)

Even without a formal Traffic Impact Analysis, the record allows conservative calculation of trips using the Applicant's own attendance figures and operating schedule. The weekly schedule from the existing Menaul Street Mosque, entered into the record by the Appellant and not disputed by the Applicant, shows six daily prayers, Friday Jumu'ah services split into two times, regular evening programs, youth Quran programs on weekends, and additional gatherings.

Using the record's own attendance figures and published ITE occupancy rates by activity type, the Appellant's trip conservatively estimates about **2,164 vehicle trips per week** and **560 trips on a single Friday under the revised plan**, even before counting unquantified population transfer, regional draw, or Eid events. Worship trips use the published ITE Land Use Code 560 rate of 2.5 persons per vehicle; youth-program drop-offs use the ITE Land Use Code 520 rate of 1.15 persons per vehicle; and recreation uses the ITE Land Use Code 492 rate of 1.5 persons per vehicle. These figures rely only on the Applicant's own statements and schedule, not on any speculative "worst case," and use only published ITE occupancy data rather than a single blended assumption. The exhibit explicitly treats them as minimum estimates, omitting population transfer from closing mosques, regional westside draw, and Eid events. See the attached data chart.

The exhibit expressly treats these numbers as minimum estimates. Corridor context confirms that such volumes are material. The only traffic study in the record, the 2020 Murphy Express Traffic Study (Packet Pg. 1407–1426), projected 168 PM peak-hour trips (86 entering + 82 exiting per the trip generation table at Packet Pg. 1416) from a single 12-pump gas station on this same corridor and documented Level of Service F on the westbound Alameda through-movement at the adjacent Alameda / 4th Street signalized intersection

under 2020 BUILD conditions (Packet Pg. 1417). That study also documented Level of Service F at the Murphy Express Driveway “A” left-turn movement on Alameda Blvd. (64.1 seconds control delay, Packet Pg. 1409) and required both site driveways to be restricted to right-in/right-out-only access (Driveway A on Alameda Blvd. per NMDOT; Driveway B on 2nd Street per Bernalillo County Public Works, Packet Pg. 1410). Ms. Luna testified that Alameda “absolutely does have a congestion issue” and that “it is a regional problem,” and warned the Board that a TIA deferred to building permit might mitigate site traffic but “is not mitigating the regional issue.” Approving a high-volume worship and recreation complex on this corridor with “nothing on record” in the way of a project-specific TIA is inconsistent with Section 24.

The trip estimates above apply published ITE rates from the Trip Generation Manual, 11th Edition (2021) as a conservative, record-based baseline — already more current than anything in the County’s record. The ITE Trip Generation Manual, 12th Edition, released August 2025, is the current professional standard and was current before the July 1, 2026 hearing; it reflects over 550 new study sites and removed all pre-1990 data to better capture post-pandemic travel behavior. The County, however, applied no current ITE trip-generation standard in approving this conditional use. The only traffic study in the record — the 2020 Murphy Express Traffic Study (Packet Pg. 1407-1426) — predates even the 11th Edition. The County’s traffic-safety finding therefore rests on stale data rather than the current professional standard, compounding the absence of any project-specific Traffic Impact Analysis.

B. Procedural History

The Zoning Administrator approved the conditional use permit at the administrative level on the original site plan submitted by the applicant at the April 2026 hearing. Appellant filed an appeal in Case No. ZBA2026-0001. The matter was scheduled for hearing before the Bernalillo County Planning Commission on July 1, 2026.

Prior to the hearing, Appellant filed timely motions for a 60-day continuance and a 120-day continuance to allow time to obtain expert witnesses, review traffic and safety issues, and obtain expert advice on zoning codes, ordinances, and traffic analysis because nothing was on record by the Applicant or the ZA to prove the burden of proof had been met. Neither motion was ruled upon on the record before, during, or after the hearing.

C. The Day-Before Site Plan Revision

On June 30, 2026 — the afternoon before the hearing — the Applicant submitted supplemental materials to the Zoning Administrator's office, including a revised site plan. Staff later stated those materials were on record, even though the revised materials were not meaningfully available to the public before the hearing and, as of today’s date, had not appeared in the agenda packet or public record in usable form.

Before the hearing, but after approving the land-use permit at the administrative level, staff determined that the proposed school and classroom use “rose beyond what would be an incidental use and would be kind of a conditional use on its own,” and informed the Applicant that the school would require a separate conditional use permit. The Applicant then chose to remove the school and daycare, but that change was not disclosed to the

public or the Board until after approximately 3.5 hours of public comment and testimony on the original site plan.

ZA Gould then presented the revised site plan to the Board and asked that it be entered into the record, even though, as of date, it could not be found by the public or Appellant. The Appellant and public received no advance notice and had no meaningful opportunity to review, analyze, or respond to the revised submission either before or during the hearing. When Appellant Pat Hauser attempted to address the revision after the Applicant spoke, the Chair told him to take his seat and did not allow comment.

Critically, the architectural drawings that were on record at the time of the hearing for a vote — Sheets A-200 and A-300 (floor plans) and S-100 (site plan), dated April 6, 2026, and September 11, 2025 — still showed the school and daycare. Four daycare rooms remain on the first-floor plan, and eighteen classrooms remain on the second-floor plan. No amended, stamped architectural drawings removing those uses were submitted to the public record on which the appeal and hearing were based.

This sequence constitutes an appealable procedural due process violation because the Appellant and the public were denied fair notice and a meaningful opportunity to review and respond to the actual plan on which the Board based its decision.

D. The July 1, 2026, Hearing

The hearing proceeded on July 1, 2026, on the original submitted site plan, not the revised site plan. Appellant raised continuance motions on the record before opening arguments. No staff or Board member ruled on those motions. The hearing proceeded.

County traffic engineer Julia Luna testified that the ITE Trip Generation Manual is "essentially the gold standard" for traffic analysis; that a Traffic Impact Analysis is required for a project of this size and type; that there was "nothing on record" regarding project-specific traffic data; that Alameda Boulevard "absolutely does have a congestion issue" and "it is a regional problem"; and that a TIA deferred to building permit phase would address only site-specific mitigation and "is not mitigating the regional issue."

County Director Nicholas Hamm testified that the Board could condition approval on a TIA at the building permit phase, that "there is subjectivity built in here because we don't have the TIA," and that, to his knowledge, religious institutions had not been required to provide a traffic impact analysis before the building permit process.

The Applicant's agent testified that architect Scott Anderson stamped the plans; that the first floor is 43,000 square feet and the second floor is between 15,000 and 17,000 square feet; and that traffic from different uses would not peak at the same time, though no supporting data was submitted. The Applicant also stated that existing mosques in the area would close and their congregations would transfer to this location, and that the site was chosen specifically to serve the west-of-river community and is central to the greater Albuquerque area, but provided no figures, projections, or analysis for those claims.

Commissioner Withers asked the Applicant directly during deliberations for a trip count on Friday worship "starting off with 60 cars moving up to 300 cars. But it is going to be under the 200-car ratio. Is that pretty, correct?" The Applicant confirmed: "Correct." Commissioner

Withers then stated on the record: "There is not a way to address the traffic issues... good luck. That really frustrates me." He voted in favor of granting the appeal and was overruled.

E. The Vote

During deliberations, Finding 5 was being amended in real time when the vote was called. Commissioner Michael Leon Guerrero stated on the record that he needed more information before voting. Commissioner Trujillo stated he needed more time before voting. The vote proceeded anyway.

The motion to deny the appeal and approve the conditional use permit with modified conditions passed. The vote was not unanimous. Commissioner Withers voted to grant the appeal. The 60,000-square-foot maximum High Volume Use Complex cap was added as a condition during deliberations.

III. LEGAL STANDARD

A. Section 24 — Burden of Proof

Section 24 of the Bernalillo County Zoning Ordinance governs conditional use permits. The burden is on the Applicant to demonstrate that the proposed use satisfies all required findings, including that the site is large enough to accommodate the use, that it meets setback requirements, that the site can be developed in such a manner that there are not undue traffic or hazards, and that the proposed use will have no adverse effect on the neighborhood or seriously conflict with the character of the area. All findings must be supported by substantial evidence in the record. The burden rests with the Applicant — not the Appellant, not staff, and not the Board.

B. Applicable Case Law

Duke City Lumber Co. v. N.M. Environmental Improvement Bd., 101 N.M. 291, 681 P.2d 717 (1984), sets the whole-record substantial-evidence standard governing review of administrative zoning decisions and requires that the findings supporting a permit rest on substantial evidence in the record at the time of decision — not on assumptions or staff confidence that issues can be resolved later.

Battershell v. City of Albuquerque (State ex rel. Battershell), 108 N.M. 658, 777 P.2d 386 (Ct. App. 1989), confirms that conditional-use proceedings are quasi-judicial and must afford procedural due process, including sworn witnesses and the right of cross-examination, so that lay and resident testimony is competent evidence to be weighed in the record.

High Ridge Hinkle Joint Venture v. City of Albuquerque, NMSC-050, 126 N.M. 413, 970 P.2d 599 (1998) addresses the doctrine of administrative gloss. Hinkle holds that a municipality's long-standing administrative practice may inform the construction of an ambiguous ordinance provision only where the practice is consistent, applied to similarly situated applicants, sustained over a period of years, and undisturbed by legislative action. Hinkle does not authorize a local government to override a clear, mandatory ordinance requirement — such as Section 24's findings requirement — through anecdotal or single-witness recollections of past practice; the doctrine operates only in the gap left by genuine

ambiguity, and only where every element the New Mexico Supreme Court articulated is affirmatively established on the record.

RLUIPA, 42 U.S.C. § 2000cc, does not exempt religious institutions from neutral, applicable safety and traffic standards. Its equal-terms provision, § 2000cc(b)(1), and nondiscrimination provision, § 2000cc(b)(2), prohibit treating religious assemblies on less than equal terms or discriminating against them, but permit application of neutral standards so long as religious uses are treated at least as well as comparable secular assemblies.

Dolan v. City of Tigard, 512 U.S. 374 (1994), and Koontz v. St. Johns River Water Mgmt. Dist., 570 U.S. 595 (2013), establish that any condition, fee, or in-kind requirement imposed on a land-use approval including monetary exactions and mitigation obligations imposed at or after the permit stage must bear an essential nexus to a legitimate government interest and be roughly proportional to the impact actually caused by the applicant's project.

Dolan and Koontz thus constrain what the County may lawfully extract at the building-permit stage: an applicant cannot be made to fund regional or corridor-wide mitigation whose scope exceeds his project's proportional impact. That constitutional ceiling is precisely why the mandatory Section 24 traffic finding must be made on substantial evidence at the conditional-use stage and cannot be cured by deferring the analysis to a later stage at which the County's own remedial authority is constitutionally limited. Deferral guarantees inadequate mitigation because of the constitutional ceiling, so the finding must be made now, on substantial evidence, at the CUP stage.

Taken together, these authorities show that the Planning Commission's decision is not supported by substantial evidence on the mandatory Section 24 findings. Discretion is not a substitute for evidence and does not permit the Board to skip mandatory findings or rely on an incomplete file.

C. Additional Legal Standards from County Zoning Ordinance

In addition to Appendix A, Section 24, the County's zoning ordinance contains explicit standards and procedures that govern conditional uses, special-use amendments, and appeals. The ordinance requires the Zoning Administrator to make specific findings before granting any conditional use permit, including that the site is adequate in size and shape, that it can be developed without undue traffic congestion or hazards, that the use will have no adverse effect on the neighborhood or seriously conflict with area character, and that any necessary protective conditions are imposed.

These standards mirror and reinforce Section 24's findings. They confirm that traffic safety, neighborhood impact, and area character are not discretionary matters that may be deferred to the building-permit stage; they are mandatory threshold findings that must be supported by substantial evidence at the time a conditional use is approved.

The ordinance's provisions governing amendments to Special Use development plans also show a codified concern for traffic impacts and residential adjacency. The hearing and notice provisions require advanced publication, mailed notice, and posted signs, and provide that failures in posting may be grounds for deferral or denial. The appeal and protest provisions likewise show that the County intends neighboring property owners to have meaningful protection when high-impact conditional uses are considered.

IV. ARGUMENT — LEGAL ERROR, LACK OF SUBSTANTIAL EVIDENCE, AND PROCEDURAL DUE PROCESS PROBLEMS

A. The Applicant Failed to Meet Its Burden Under Section 24

The record before the Board at the time of the vote contained not one page of a Traffic Impact Analysis submitted by the Applicant or any equivalent engineer-prepared traffic study. County traffic engineer Ms. Luna testified that the ITE Trip Generation Manual is “essentially the gold standard” for traffic analysis, that a TIA is required for a project of this size and type, and that there was “nothing on record” regarding traffic data for this project.

Even if the ordinance does not use the phrase “Traffic Impact Analysis,” it still requires competent evidence sufficient to support a finding of no undue traffic hazard, and that evidence was not presented here. The Board cannot satisfy a mandatory finding through speculation, assumptions, or a promise to study the issue later at permit review.

In the absence of a formal TIA, the only quantitative analysis in the file is the Appellant's trip exhibit, prepared from the Applicant's own submissions and the Menaul Street Mosque schedule using published ITE occupancy rates. As detailed in Section II.A above, that exhibit estimates 2,164 vehicle trips per week and 560 trips on a single Friday, treated as minimum figures.

The exhibit expressly treats these numbers as minimum estimates. The corridor context confirms that such volumes are material. The only traffic study in the file, the 2020 Murphy Express Traffic Study (Packet Pg. 1407-1426) for a site across the street from 9600 2nd Street NW, projected a PM peak-hour subtotal of 168 trips (86 entering + 82 exiting, or 117 primary trips after a 30% pass-by adjustment, Packet Pg. 1416) from a single 12-pump gas station and convenience market and documented Level of Service F on the westbound Alameda through-movement at the Alameda / 4th Street signalized intersection under 2020 BUILD conditions (V/C 1.10, 76.8 seconds control delay, 1,348-foot 95th-percentile queue, Packet Pg. 1417). Even that comparatively modest gas-station load documented Level of Service F at the Murphy Express Driveway “A” left-turn movement on Alameda Blvd. (64.1 seconds control delay, Packet Pg. 1409) and required both site driveways to be restricted to right-in/right-out-only access (Driveway A on Alameda Blvd. per NMDOT; Driveway B on 2nd Street per Bernalillo County Public Works, Packet Pg. 1410). County traffic engineer Luna testified that the corridor's congestion is a regional problem and warned that a TIA deferred to building permit could mitigate site traffic but “is not mitigating the regional issue.”

Commissioner Withers' own statements underscore the evidentiary gap. The only numeric vehicle count elicited from the Applicant on the record was a rough Friday worship estimate, and it did not account for evening programs, youth Quran programs, the gym and basketball court, the indoor pool room, the coffee shop and cafeteria, or population transfer from closing mosques. As quoted above in Section II.D, Withers expressed frustration on the record and voted to grant the appeal.

Parking Calculations in the Record Are Internally Inconsistent

The record's parking figures cannot be reconciled and independently undermine the Board's Section 24 findings. Attachment 11 (the appellant's July 1 submission) states the applicant's own materials describe 350 to 400 attendees generating 150 to 200 vehicles for the Friday

service, while Attachment 12 (the applicant's revised submission) calculates a required parking demand of only 202 spaces based on 250 attendees and a formula of 3 spaces per classroom plus 1 space per four seats in the worship area.

These two applicant-derived figures are irreconcilable: one submission's attendance estimate is 40 to 60 percent higher than the other, yet neither was reconciled, evaluated, or explained anywhere in the record before the Board acted. A Board cannot make substantial evidence finding that off-street parking is adequate to serve the use when the applicant's own submissions dispute the basic attendance figure the parking calculation depends on.

This inconsistency is not a technical footnote. Parking demand is a direct proxy for trip generation, and an unresolved 100-to-150-person swing in stated attendance translates directly into the unresolved traffic-volume dispute described above.

The Board's failure to require the applicant to reconcile its own numbers before voting compounds the absence of a Traffic Impact Analysis and further shows that Findings 2, 3, and 6 rest on contradictory, unverified figures rather than substantial evidence.

Layperson Analysis (Exhibit 14) Underscores the Applicant's Failure

It is important to be clear about what the Appellant's trip exhibit is — and is not. It is not a substitute for the engineer-prepared Traffic Impact Analysis that County staff testified was required for a project of this size and type. It is a conservative, transparent calculation prepared by non-engineers using only the Applicant's own written attendance figures, weekly operating schedule, and facility descriptions already in the record.

The point of the exhibit is not that Appellant had to perform the Applicant's work. The point is that even a layperson, working from public documents and hearing testimony, could derive a basic trip projection demonstrating substantial demand. If neighbors and appellants could do that in a matter of pages, then an Applicant represented by a licensed civil engineer had every opportunity — and, under Section 24, the burden — to provide at least as much analysis, if not a full Traffic Impact Analysis, with the conditional-use application.

A Traffic Impact Analysis should not have been deferred to the building-permit stage in this case. A permit-stage study can refine driveway geometry, internal circulation, and striping, but it cannot retroactively supply the substantial evidence needed for the threshold decision that a high-volume worship and multi-use complex is appropriate on an already constrained corridor.

B. The Day-Before Site Plan Revision Was Procedurally Improper and Substantively Insufficient

On June 30, 2026, the afternoon before the hearing, the Applicant submitted a revised site plan to the ZA. This revision was **presented at the end of closing arguments at the hearing** and entered into the record verbally. The Appellant and public had no advance notice and no opportunity to respond.

The school and daycare were removed not as a voluntary concession to community concerns, but because staff determined they required a separate conditional use permit.

The Applicant removed them to avoid a second regulatory process, not to reduce traffic impact.

Most fundamentally, the removal did not reduce the traffic-generating capacity of the complex in any documented way. A mosque-affiliated school and daycare primarily serve families already present at the site for worship. The worship hall, recreational facility, and office complex — the primary traffic generators — remained in the revised plan without change.

The only change to the conditions increased the gross footprint to a condition cap of 60,000 gross square feet making the complex larger, not smaller. The 60,000 gross square-foot High Volume Use Complex cap remained. No witness quantified any reduction in traffic, and no updated traffic analysis translated that revision into a supported Section 24 finding.

The Board cannot approve of the theory that traffic is lower when the actual magnitude of impact was never placed in evidence. Last-minute changes do not cure a defective record when they are unaccompanied by current technical analysis and leave opponents without a fair chance to evaluate the revised design.

C. The Unanswered Continuance Motions Constitute a Procedural Due Process Violation

The Appellant filed timely motions for a 60-day continuance and a 120-day continuance to allow adequate time to obtain and review a Traffic Impact Analysis. Both motions were raised on record before the hearing commenced. Neither was ruled upon. The hearing proceeded as if the motions had not been filed.

A party's right to be heard includes the right to have procedural motions ruled upon on the record. Proceeding to a full hearing and vote without ruling on pending continuance motions denies the Appellant a fair hearing and constitutes a procedural due process violation.

Additional procedural concern: informal handling of a formal inquiry

After the July 1 hearing, Appellant submitted a formal written inquiry to Planning asking for clarification of how the Board had managed the 60-day and 120-day continuance motions and what formal action had been taken. Rather than providing written answers, Director Hamm replied that Appellant was welcome to call him to discuss the questions. Appellant then prepared a memo of understanding documenting Hamm's verbal statements, including that the Board “does not have to acknowledge” the continuance requests it “did not elect to review.” In a quasi-judicial setting, pending motions and procedural questions are supposed to be addressed openly and in writing. That practice undermines transparency and fairness and reinforces due-process concern.

D. RLUIPA Was Misapplied

County Director Hamm warned the Board during deliberations that treating a religious institution differently could expose the County to RLUIPA liability. That warning was legally incorrect as applied to this proceeding.

RLUIPA prohibits governments from discriminating against religious institutions or imposing substantial burdens on religious exercise without justification, and it requires that houses of worship be treated at least as favorably as comparable secular assemblies. ***It does not freeze counties into repeating unwritten past practices or prevent them from enforcing neutral, applicable traffic and safety standards when a project crosses high-volume thresholds.***

Requiring a Traffic Impact Analysis for a 60,000-square-foot High Volume Use Complex on a two-lane rural corridor is a neutral infrastructure requirement that applies to any assembly use of that scale, religious, or secular. Raising RLUIPA to discourage traffic safety finding misstates federal law and improperly discouraged the Board from applying Section 24 and 18.31.6.16 NMAC as written.

E. The Population Transfer and Late-Submitted New Site Plan Created an Unquantified and Unaddressed Traffic Impact

The Applicant testified on the record that existing mosques in the area will close, and their congregations will transfer to this location, and that the site was chosen to serve the west-of-river community and attract new congregants from that area. No figures, projections, or analysis were provided for those statements.

These admissions establish that the traffic impact of this facility is not limited to its stated capacity. The transfer of multiple existing congregations to a single new location — combined with deliberate outreach to attract a new west-of-river population — creates a multiplier effect that was never quantified, never analyzed, and never addressed by any condition of approval.

At the hearing, the Chair stated on the record that state law allows liquor and cannabis establishments to operate next door to a church and that it is not a violation for a church to move in next door. That statement was only half the story. Under New Mexico's liquor distance-restriction statute, NMSA 1978, § 60-6B-10, and related local provisions, the three-hundred-foot church and school rule governs both the issuance and transfer of liquor licenses: once a church locates near an existing licensed premises, any later transfer of that license or approval of a new licensed premises within that buffer generally requires a formal waiver process and is subject to additional scrutiny. In practical terms, while the church's move next door does not immediately shut down the existing liquor or cannabis business, it can limit that business's future ability to sell, relocate, or transfer its license, and can restrict new licensed premises from locating within the protected radius absent a waiver.

As a result, once this large religious complex is sited on the corridor, certain liquor and cannabis establishments will be legally barred from transferring their licenses to new premises within the prescribed distance of the complex, and new licensed premises may be restricted from locating there absent a waiver. This forecloses some alternative high-volume commercial uses over time and tends to concentrate long-term traffic impacts in the approved assembly use rather than distributing them among a mix of corridor-appropriate uses. The Chair's reliance on "state law" to reassure the public, without disclosing these long-term licensing and siting effects, left the public with an incomplete understanding of how siting a large religious assembly can shape future commercial patterns and traffic loads on the corridor.

F. TIA Deferral Was Not Authorized and Cannot Substitute for the Mandatory Section 24 Finding

County Director Hamm advised the Board that deferral of a Traffic Impact Analysis to the building permit phase is an established rule or standard practice in Bernalillo County. Research of the code reveals no such rule. Section 74-103 — the only codified TIA provision — is discretionary, applies in the subdivision context, and does not govern conditional use permit applications. No administrative policy authorizing blanket deferral was found in any published county document.

Even if the NMAC trip thresholds are viewed as guidance rather than a direct permit trigger, they still provide objective evidence that a project of this scale called for current traffic analysis before the Board made its no-hazard finding. **NMAC §18.31.6.16 requires a Traffic Impact Analysis for development on a state highway generating 100 or more peak-hour trips; because Alameda Boulevard is a state highway, that state-level review standard independently applied here. Any claim that “this is how the County has always done it” is not a legal defense, because unwritten practice cannot override ordinance standards or substitute for the findings the code requires in the actual record.**

The applicant's numbers are not merely inconsistent; they are self-refuting. As developed in Section IV.G below, the trip count itself cannot hold still within a single applicant colloquy, and even on its own low numbers exceeds the Traffic Impact Study warranting threshold of 100 peak-hour trips published in the Albuquerque/Bernalillo County Development Process Manual (Ch. 7 §7-5(C)(2)).

The conditional use under review is not a mosque alone; it is "a church and incidental facilities," with the Applicant himself describing the project as "the mosque and the incidental facility — the gym, the basketball, and other amenities." Despite that scope, the Applicant's traffic testimony addressed worship to the exclusion of all else, asserting categorically that "there are no cars except during services" and "there is no traffic there on any single day except Friday." The gym, basketball court, library, kitchen, and related amenities — all approved components of the use — generated no trip analysis.

Even confined to worship, the applicant's own figures shift materially across a single colloquy: "maybe 100 to 180 total attendees between the two services"; then "no more than 140 to 150 cars"; then, with the service split, "100 to 120 cars at a peak"; then a build-out to "maximum capacity of 600 worshippers," with 150 code-required spaces and 235 provided. When the commission distilled this into "60 cars at the start up to around 300 cars at maximum," the applicant confirmed: "Yes. Correct."

Measured as trips — each vehicle generating an inbound and an outbound trip — the applicant's own low figure of 140 to 150 cars yields 280 to 300 trips; his acknowledged maximum of 300 cars yields 600 trips.

Either way the site exceeds the Traffic Impact Study warranting threshold published in the Albuquerque/Bernalillo County Development Process Manual, Chapter 7 §7-5(C)(2) and Table 7.5.87 — more than 100 AM or PM peak-hour trips — using nothing beyond the applicant's own testimony and the Institute of Transportation Engineers methodology that the County's own traffic operations manager identified as "essentially the gold standard to determine the number of trips to the site."

This is not a matter of the applicant merely failing to meet his burden; the record independently confirms it. The only traffic analysis placed in the record — submitted by the appellant because the County produced none — reflects that the traffic engineer who performed the corridor's Murphy study estimated that a 43,000-square-foot mosque "is going to generate a minimum of 410 occurrences in the morning and 1,300 in the afternoon" (Hauser, relaying T. Brown). That 43,000-square-foot figure on the site plan is the applicant's own (changed later to 60,000 gross square footage), and the resulting estimate dwarfs the

published Traffic Impact Study threshold of 100 peak-hour trips (DPM Ch. 7 §7-5(C)(2)) several times over.

Notably, the County's traffic engineer conceded that traffic studies are "valid for three years" yet offered no project-specific, current analysis — confirming that the hard traffic finding required by Section 24 was never made, only deferred.

Most critically, even if the Board had discretion to defer requiring a formal TIA document, that discretion does not eliminate the mandatory Section 24 finding that the site can be developed without undue traffic hazards. The County's own traffic engineer testified: "No. You have nothing on record." An affirmative finding of no undue traffic hazards cannot be made on a record containing nothing.

The County's assumption that deferred building-permit review can supply the mitigation Section 24 requires also runs into a constitutional ceiling. Under *Dolan v. City of Tigard*, 512 U.S. 374 (1994), and *Koontz v. St. Johns River Water Mgmt. Dist.*, 570 U.S. 595 (2013), the County can only require the Applicant to fund mitigation proportional to the impact his project causes not the corridor's cumulative regional failure.

Ms. Luna's own testimony that a deferred study "is not mitigating the regional issue" confirms the mismatch: the mitigation the corridor requires exceeds what can lawfully be extracted from this single applicant at building permit. Deferral therefore does not merely postpone Section 24 finding; it guarantees that the finding, when it comes, will rest on mitigation the County has no constitutional authority to compel. Substantial evidence at the conditional-use stage before approval is the only point at which the Board can lawfully weigh whether this high-volume use is appropriate on this corridor at all.

G. The Record Contains No Substantial Evidence Supporting the Section 24 Traffic Finding, and the Board Inverted the Legal Standard by Deferring It.

Section 24 requires the Applicant to prove, before a conditional use may issue, that "the site can be developed so that undue traffic congestion and hazards will not be created." The record before the Board contains no project-specific traffic study at all — Public Works told the Zoning Administrator that a traffic review "would be required at building permit", and the County's traffic operations manager confirmed that "this project does need to have its very own traffic study for this location". That is not proof; it is deferral. What stands in for proof is the Applicant's own testimony, which is fluid, internally inconsistent, and even on its own terms exceeds the Traffic Impact Study warranting threshold of 100 peak-hour trips published in the Albuquerque/Bernalillo County Development Process Manual (Ch. 7 §7-5(C)(2), Table 7.5.87).

[COMMISSIONER NELSON]: At discretion, we can condition approval on a traffic study being required prior to building permit, correct?

[HAMM]: Yes. It is within your authority to ask for additional information. I would offer caution around imposing a requirement specifically on a religious institution that would be additional or different from what the county has required of other religious institutions in the land use process. To my knowledge, religious institutions have not been required to provide a traffic impact analysis before the building permit process. However, you can absolutely require as a condition of approval — with the building permit — and you could

even go further to say that construction of the facility would require construction of the infrastructure as required by Public Works. That process is already built into any construction permit in the county.

[COMMISSIONER NELSON]: If we required a TIA right now, that could place an undue burden on the applicant at this juncture when they would be required to do it anyway at the building permit stage?

[LUNA]: It could be used for the building permit. They would be required to mitigate the traffic impact due to the trips coming and going to their site. That is not mitigating the regional issue, but it is mitigating the additional traffic that will be generated by their site.

That deferral was not an accident of process but a deliberate choice that inverted the legal standard. Yet rather than require the study Section 24 demands, the Board pivoted to the Applicant's convenience and to a misplaced caution against imposing on a religious institution a requirement "additional or different from what the county has required of other religious institutions" (Director Hamm). Ms. Luna confirmed the deferred study would address only site-trip mitigation, "not... the regional issue".

This is the inversion in plain view. The Board knew it had authority to require a project-specific TIA before approval, and staff confirmed that authority on the record. The Board chose not to exercise it not because the Applicant had carried his Section 24 burden (he had not), but because requiring the analysis was framed as a "burden" on the Applicant and a potential slight to religious exercise. Section 24 places the burden on the Applicant, not on the Board's sense of fairness to him; the Board's role was to determine whether that burden was met, not to spare the Applicant from proving his case.

The RLUIPA caution was doubly misplaced: RLUIPA bars discrimination and substantial burdens on religious exercise, not the application of a neutral traffic-study requirement, and Mr. Hamm's own framing — that religious institutions have "not been required to provide a traffic impact analysis before the building permit process" (Director Hamm) — confesses that the "practice" relied upon is an unwritten staff custom, which cannot substitute for the ordinance's requirements.

A trip count that cannot hold still within a single answer, which ignores every incidental use the permit grants, which is independently corroborated by the only ITE-based estimate in the record, and that nevertheless crosses the threshold on its face, cannot rest on a deferred study and an inverted burden. Under *Duke City Lumber*, approval on this record is not supported by substantial evidence; it is error.

The County has argued on appeal that its practice of deferring Traffic Impact Analyses for religious institutions to the building-permit stage is a longstanding administrative practice the Board was entitled to rely on.

That argument invokes the doctrine of administrative gloss recognized by the New Mexico Supreme Court in *High Ridge Hinkle Joint Venture v. City of Albuquerque*, NMSC-050, 126 N.M. 413, 970 P.2d 599 (1998) but Hinkle's requirements defeat the County's own position.

Under *Hinkle*, an administrative gloss binds the municipality only when (1) the ordinance clause at issue is ambiguous; (2) the administrative practice is consistent; (3) it is applied to

similarly situated applicants; (4) over a period of years; and (5) without legislative interference. None of these conditions is satisfied here.

First, Section 24's requirement that the site "can be developed so that undue traffic congestion and hazards will not be created" is not an ambiguous clause. It is a clear, mandatory factual finding the Board must make on substantial evidence at the time of decision. There is no interpretive gap for administrative gloss to fill.

Second, the record contains no evidence of a consistent, multi-year practice only Director Hamm's personal recollection that "to my knowledge, religious institutions have not been required to provide a traffic impact analysis before the building permit process." Anecdotal, single-witness recollection is not the documented, consistent, year-long application of a practice to similarly situated applicants that Hinkle demands.

Third, "religious institutions" is not the similarly situated class Hinkle contemplates. A 60,000-square-foot high-volume assembly complex on a documented failing corridor is not similarly situated to a small neighborhood church and defining the class by religious identity rather than by comparable use and impact is itself the equal-terms problem RLUIPA forbids. Consistent administrative practice, if it existed, would have to be shown across all comparably scaled assembly uses — religious and secular alike — not selectively within a religious subset.

Fourth, and most fundamentally, Section 24 and Public Works Technical Standards Section 8.4 are the legislative body's own written directives requiring project-specific traffic evidence at the conditional-use stage. Where the legislative body has spoken through written ordinance and technical standards, there is no room for administrative gloss to override that direction. Hinkle establishes that "the plain language of a statute is the primary indicator of legislative intent" and that courts "will not read into a statute or ordinance language which is not there." The County cannot use an unwritten deferral practice to read into Section 24 an exception the legislative body did not put there — particularly one tied to religious status, which RLUIPA independently prohibits.

The County's Hinkle argument fails on its own terms. Administrative gloss cannot substitute for a clear, mandatory ordinance finding; it cannot rest on anecdotal single-witness testimony; it cannot be defined by religious identity; and it cannot override the written technical standards the legislative body has already adopted. Under *Duke City Lumber*, the Section 24 traffic finding required substantial evidence at the time of the vote. The record contains none, and the County's post-hoc invocation of longstanding practice cannot cure that absence.

H. Finding 5 Was Legally Defective

At the July 1 hearing, staff displayed draft findings and conditions on the screen, including language that was being changed in real time during deliberations. The finding later labeled as "Finding 5" — the key statement about traffic safety and neighborhood impact — was still being rewritten when the Chair called for a motion and vote. There was no point at which the final, fully edited text of Finding 5 was read aloud on the record in final form before the Board acted.

A finding that is not final at the time of the vote is not a finding; it is a draft. Voting on conditions and findings that had not been finalized deprived the record of the legal foundation required to support the approval.

I. Finding 4 Lacked Evidentiary Support on Building Height

Finding 4 concludes that the proposed use will have no adverse effect on the neighborhood and will not seriously conflict with the character of the area, relying in part on comparability with adjacent uses. Yet nowhere in the record not in the application, the staff report, the site plan notes, or the Notice of Decision does any document state the proposed building's height in feet. The only size metric ever provided is floor-area square footage (43,000 to 50,000 square feet across two levels, depending on which applicant submission is credited).

Building height and floor area measure fundamentally different things. A single-story, 50,000-square-foot building and a two-story, 25,000-square-foot footprint building can occupy the same square footage while presenting entirely different visual mass, sightline, and neighborhood-compatibility profiles. Because the A-1 zone caps height at 26 feet (subject to exemptions for belfries, spires, and similar features), height is a threshold zoning metric independent of square footage, and ***Finding 4 cannot lawfully rest on a comparison the record never actually made.***

The absence of any height figure or height elevations means the Board approved a two-story institutional complex adjacent to single-family residential lots without ever placing itself before the Appellant, or the public the one dimension most directly tied to neighborhood-compatibility impacts such as shadowing, privacy, and visual scale. This gap independently defeats the substantial-evidence basis for Finding 4 and should be corrected on remand by requiring stamped architectural elevations showing height in feet before any future approval.

J. Finding 1 Mischaracterized the School and Daycare as "Incidental"

Finding 1 frames the application as one for "a church and incidental facilities," treating the proposed K-12 school and daycare as ancillary to the primary worship use. The record does not support that characterization. The applicant's own submissions describe eighteen classrooms, four daycare rooms, a kids' cafeteria, and a school entrance separate from the worship hall, serving up to 100 students daily in addition to Friday worshippers.

Staff later, after their approval, concluded that the school "rose beyond what would be an incidental use and would be kind of a conditional use on its own," requiring a separate conditional use permit. ***That determination directly contradicts Finding 1's premise that the school and daycare were incidental to the church use at the time the finding was adopted.*** A finding that mischaracterizes the scope of the use at the threshold cannot support the remaining Section 24 findings that depend on it, including the traffic and neighborhood-compatibility findings addressed above.

Because the architectural drawings on record at the time of the vote still depicted the full eighteen-classroom, four-daycare-room layout, Finding 1 was factually inaccurate when adopted and remains uncorrected in the final record. ***This is an independent, freestanding evidentiary defect requiring correction on remand.***

K. Finding 3 Lacked Support for Ingress and Egress Adequacy

Finding 3 concludes that the site "provides sufficient ingress and egress for vehicular access" and can be developed without undue traffic congestion or hazards. The site plan in the record, however, shows only one main entrance vehicular gate and one main exit vehicular gate serving a facility with a stated capacity of 350–400 worshippers and up to 600 attendees on peak days, a single point of ingress and egress that the appellant's submissions specifically flagged as inadequate for emergency vehicle access, fire-lane turning radii, and secondary egress.

In practical terms, the current layout functions as a single constrained driveway system for hundreds of simultaneous worshippers and incidental users, which is inconsistent with standard emergency-access expectations for high-occupancy assembly uses and undermines the Finding 3 conclusion on traffic safety and egress.

No fire marshal review, emergency access plan, or turning-radius analysis appears anywhere in the record to support Finding 3's conclusion. County staff confirmed only that fire review would occur later, at the building-permit stage, meaning the very evidence Finding 3 purports to rely on did not exist at the time the finding was adopted.

A finding that a single-gate access point is "sufficient" for an assembly use of this scale, made without any emergency-access or fire-safety analysis in the record, is not supported by substantial evidence and should be vacated along with the traffic findings it accompanies.

L. Finding 6 Rested on an Unresolved Conflict Between Site Plan Versions

Finding 6 states that the applicant "intends to provide" landscaping and buffering "in compliance with" ordinance requirements, including a six-foot wall and buffer landscaping along the north boundary. The record contains at least two conflicting site plans on this point: the March 11 original site plan, which the March 11 hearing record describes as showing a landscape buffer narrower than the required minimum, and a revised plan submitted for the April 8 hearing showing an expanded buffer, followed by yet another late revision submitted June 30, 2026, the night before the July 1 hearing.

No final, stamped landscape plan confirming the buffer width and wall specifications was entered into the record in a form the public or appellant had a meaningful opportunity to review before the vote. Finding 6's use of future-tense language ("intends to provide") rather than a confirmed as-built commitment underscores that the buffer requirement was never verified against a final plan before approval.

Because Finding 6 depends on a site plan that was still being revised through the eve of the hearing, and because the final revision was not meaningfully available to the public, the finding cannot be said to rest on substantial evidence of a fixed, compliant landscaping plan.

M. Finding 10 Lacked Support Because Required Safety Plans Were Never in the Record

Finding 10 concludes that the three conditions of approval are "necessary to ensure orderly development of the site, as well as the protection of the public health, safety, and general welfare." Section 24 contemplates that conditions of approval may address open space and buffers, walls and fences, parking surfacing, points of ingress and egress, signage, landscaping, noise, vibration, odor, and health hazards. At the time Finding 10 was adopted, the record contained no grading and drainage plan, no hydrology report, no noise-mitigation plan other than no speaker system outdoors, and no fire safety or emergency access plan.

Storm water impacts alone were substantial and unaddressed: the appellant's submissions calculated that a 1-inch rain event on the building footprint and paved parking area could generate over 100,000 gallons of runoff, with no pooling pond, detention plan, or storm water pollution prevention plan anywhere in the record. A finding that the public health, safety, and general welfare are protected cannot be sustained when the categories of protection Section 24 itself identify were left entirely to a later, non-public building-permit process.

Deferring these safety analyses to the building-permit stage suffers from the same defect identified above regarding the Traffic Impact Analysis: it substitutes a promise of future review for the substantial evidence Section 24 requires at the time of the conditional-use decision. Finding 10 should be vacated along with the traffic-related findings for the same reason.

N. The Zoning Administrator Violated Public Works Technical Standards Section 8.4

Separate from the Section 24 findings themselves, the record reflects an independent procedural violation of Bernalillo County Public Works Technical Standards Section 8.4, which the appellant raised in its July 1 submission. Section 8.4 mandates that high-intensity or multi-use assembly developments complete a traffic scoping report at the outset of the approval process to determine whether a full Traffic Impact Analysis is required, precisely so that the baseline Level of Service data needed for a lawful Section 24 traffic finding exists before entitlement.

According to the record and phone conversation with the ZA Staff, no Public Works Traffic Report (PWTR) number was ever activated for this project, and no scoping report was completed before either the Zoning Administrator's April 8 approval or the Planning Commission's July 1 decision. County Director Hamm's explanation that requiring a scoping report or TIA at the conditional-use stage would impose upfront costs on the applicant does not excuse noncompliance with a mandatory technical standard.

As developed in Section IV.G above, the County's reliance on unwritten deferral practice cannot satisfy Section 24 or Section 8.4 — neither the substantial-evidence standard of *Duke City Lumber v. N.M. Environmental Improvement Bd.*, 101 N.M. 291, 681 P.2d 717 (1984), nor the administrative-gloss doctrine of *High Ridge Hinkle Joint Venture v. City of Albuquerque*, NMSC-050, 126 N.M. 413, 970 P.2d 599 (1998) allows a written technical standard to be overridden by an anecdotal, single-witness recollection of past practice.

Because Section 8.4's scoping requirement was designed to generate exactly the baseline traffic data Section 24 requires for a lawful no-hazard finding, the failure to comply with Section 8.4 independently corroborates that the traffic-related Section 24 findings (Findings 3, 9, and 10) were adopted without the evidentiary foundation the County's own technical standards require.

O. The Revised Architectural Drawings Still Show School and Daycare

The revised site plan introduced at the hearing was not in the official record in a meaningful public form prior to the hearing. The last revised architectural drawings actually entered into the record — Attachment 12, Appellee's June 30, 2026, supplemental materials (Packet Pg. 1121-1125) — consist of Sheet S-100 (Site Plan, dated April 6, 2026, stamped by Scott C. Anderson, Reg. Architect No. 4341), Sheet C-100 (conceptual school drop-off and queuing exhibit, dated April 6, 2026), a Visibility Exhibit, Sheet A-200 (First Floor, dated September 11, 2025), and Sheet A-300 (Second Floor, dated September 11, 2025).

Sheets A-200 and A-300 still expressly label four daycare rooms, a kids' cafeteria, a basketball court, and eighteen classrooms. The Applicant's own late-filed Written Statement (Additional Materials from Applicant, Packet Pg. 1798, item 3) likewise still describes the intended uses of the site to include "educational programs, daycare, social events, and outreach activities." No amended, stamped architectural drawings removing the school or daycare uses were ever submitted to the record. The removal existed as verbal representation only; it was never the basis of public notice or of this appeal.

Nor does the record contain any stamped architectural drawing memorializing the "60,000 square-foot cap" the County now says was agreed to at the July 1, 2026, hearing. Every stamped site plan in

the record shows a smaller footprint: the original Sheet A-100, dated January 14, 2026 and stamped by Scott C. Anderson (Attachment 10, Packet Pg. 1084), depicts a 45,300 square-foot building footprint with 235 parking spaces provided against 205 required (154 for place of worship plus 51 for school), and the revised Sheet S-100, dated April 6, 2026 and also stamped by Anderson (Attachment 12, Packet Pg. 1121), reflects the four-foot northern-boundary reduction described in the Applicant's written statement (Packet Pg. 1801) and shows a 43,288 square-foot first-floor footprint. No drawing in the record depicts a 60,000 square-foot building envelope, and no amended, stamped drawing capping the structure at 60,000 square feet was ever entered into the record before the vote.

This discrepancy between the verbal representations and the actual plans is itself an additional ground for reversal because it shows the Board approved a project different from what was depicted and available for public review.

P. The Albuquerque International Balloon Fiesta Raised Independent, Unaddressed Traffic and Safety Concerns

The record contains a written comment letter from the Albuquerque International Balloon Fiesta, Inc. ("AIBF"), dated June 25, 2026, and signed by AIBF Executive Director Julie Morgas Baca on AIBF letterhead, entered into the record at Packet Pg. 1820-1822 (Attachment: BA2026-0001. Comments After Noon Deadline).

AIBF's letter raises traffic, public safety, and operational compatibility concerns independent of those raised by Appellant. AIBF explained that 2nd Street NW is a primary access route for Balloon Fiesta Park, carrying significant sponsor, pilot, crew, volunteer, vendor, and emergency-vehicle traffic during the annual event, and stated that "based upon the information available to AIBF, it is unclear whether a comprehensive traffic impact study was conducted as part of the conditional use application process" (Packet Pg. 1820).

AIBF requested that the Commission "determine whether a traffic impact analysis has been prepared and made part of the record" and "no such study has been completed," that the Commission "require a professional traffic impact study prior to affirming the conditional use approval" (Packet Pg. 1820). AIBF specifically requested that, at a minimum, any such study address existing and projected traffic volumes, "peak attendance estimates and associated vehicle trip generation, including the school or educational use depicted on the site plan and any associated educational, daycare, or instructional activities" (Packet Pg. 1821, item 2), impacts to adjacent intersections including 2nd Street NW and Alameda Boulevard, site ingress/egress and vehicle queuing, parking supply and overflow parking, emergency access and public safety, and traffic conditions during Balloon Fiesta events (Packet Pg. 1821, items 1-8).

AIBF further raised operational compatibility concerns given the property's location within an area routinely affected by balloon overflights and occasional balloon landings, requesting that the Board "carefully evaluate the proposed building height and any potential effects the structure may have on balloon operations, public safety, landing activities, and retrieval operations associated with the Balloon Fiesta" (Packet Pg. 1821). AIBF enumerated eight specific clarifications it sought, including "the proposed site plan, architectural elevations, building heights, and the nature and scope of the school or educational facility depicted on the site plan, including anticipated enrollment, staffing, and hours of operation" and analysis

of turning movements and traffic circulation patterns during peak attendance (Packet Pg. 1821-1822).

During deliberations, Commissioner Nelson acknowledged the Balloon Fiesta's concerns and offered, in substance, a verbal assurance that the Applicant would "work with Balloon Fiesta" during Balloon season to manage traffic and operational issues. While well-intentioned, that promise was not an appropriate substitute for the neutral, evidence-based analysis AIBF expressly requested.

AIBF asked that the Commission determine whether any traffic impact analysis had been prepared and, if not, require a professional study addressing both typical daily conditions and the extraordinary demands of Balloon Fiesta operations, including school and educational traffic, then still depicted on the site plan. Commissioner Nelson's assurance did not supply a project-specific TIA, did not place any Balloon-season analysis into the record, and did not impose enforceable conditions tied to Balloon Fiesta's detailed list of operational concerns. It therefore could not cure the Section 24 defect that AIBF independently identified: the absence of current, corridor-specific traffic evidence showing that this high-volume assembly can be accommodated safely during one of the region's most demanding transportation events.

Commissioner Nelson's verbal promise to "work with Balloon Fiesta" during Balloon season is representative of a broader pattern in this case: reliance on informal assurances and future coordination in place of the current, project-specific traffic evidence Section 24 and the County's quasi-judicial procedures require at the time of decision.

That an independent, sophisticated stakeholder with direct operational responsibility for a major regional event separately concluded that the record lacked a clear traffic impact study, and separately requested one, corroborates Appellant's position that the Section 24 record was insufficient and that the traffic-safety finding could not lawfully be made without current, project-specific analysis.

Neither the Board nor staff responded to AIBF's letter on the record, and no traffic impact study addressing year-round Balloon Fiesta operations was ever produced before the vote.

Q. The North Valley Area Plan's Transportation Policies Confirm the Corridor's Documented Traffic Sensitivity in 1993

The 1993 North Valley Area Plan, still in effect and covering the 2nd Street NW corridor and regional area (referenced in the record at Packet Pg. 35 and Packet Pg. 1053), expressly directs that the County shall **"limit access to Second Street, Alameda Boulevard, and Montañó Road from adjacent properties except where alternative access is not available or feasible,"** and shall retain existing residential zoning along these arterials precisely because of documented traffic and corridor-capacity concerns. The Plan separately identifies Second Street as a potential high-capacity transportation corridor and describes an ongoing "Second Street North Transportation Corridor Study" intended "to examine and evaluate a range of alternative transportation improvements along Second Street from I-40 to Roy Road."

The Plan's own subarea data show that Second Street already carries a disproportionate share of heavy commercial and traffic-generating Special Use Permits relative to its underlying residential zoning — with 32 of 146 acres allowing heavy commercial or manufacturing uses authorized only by Special Use Permit, **not by right**.

This decades-long, adopted planning history demonstrates that Second Street has long been recognized by the County itself as a corridor requiring heightened, case-specific scrutiny of traffic-generating uses — reinforcing that a project-specific Traffic Impact Analysis was not merely good practice for the proposed High-Volume Use Complex, but consistent with the corridor-sensitive treatment the County's own adopted area plan has required since 1993.

Despite this documented history, the Zoning Administrator permitted a high-volume use to encroach from Alameda Boulevard into an already constrained residential corridor without meaningfully engaging this safety history in the record. Rather than applying the corridor-specific scrutiny the Plan itself calls for, the record reflects an informal "it fits the existing character" rationale, **the implicit reasoning being that one more high-volume use would not meaningfully change conditions on an already strained corridor**. That reasoning inverts the analysis the Area Plan requires. In a statement made by the Zoning Administrator Staff, the NVAP is a Rank II guide and does not supersede county ordinances or codes to be considered or relevant in determining a land-use permit.

The cumulative-impact concern that the Plan was designed to address is precisely that each additional approval, considered in isolation and without a current traffic study, incrementally erodes the corridor's capacity and safety margin. Treating a project of this scale as presumptively compatible because similar approvals have occurred before substitutes assumption for the substantial evidence Section 24 requires and disregards the corridor-sensitivity findings the County's own 1993 planning judgment was intended to compel.

Even accepting staff's representation that the North Valley Area Plan is a Rank II guide, the County's Rank I ABC Comprehensive Plan independently confirms the subject area's rural character. The staff report itself finds that "the site is within the Rural Area of the Comprehensive Plan" (Finding 11, Packet Pg. 922), and the Rank I Comprehensive Plan's Rural Area policy expressly favors "alternatives to urbanization" (Packet Pg. 508). That Rank I designation separately reinforces the conclusion that a high-volume regional draw —

attracting congregants from the greater Albuquerque area — is incompatible with the rural character the County's own comprehensive plan assigns to this corridor. (See Exhibit 25.)

R. Additional Ground for Reversal: Extraordinary Majority Vote Requirement (Section 25)

The Bernalillo County Board of County Commissioners' own Appeal to County Commission application packet confirms this standard: pursuant to Sections 18.G.6-8, 24.4.f(2), and 25.F-I of the County Zoning Code, the 20% Rule requires a written petition signed by the equitable owners of record of land comprising at least 20 percent of the land within 100 feet of the subject property, excluding right-of-way not any broader 200-foot or 500-foot standing radius, which governs only who may file an appeal in the first instance and is analytically distinct from the 20% Rule calculation.

Appellant's petition identifies signers representing land ownership within that 100-foot ring, raising a direct question of whether the Section 25 protest threshold was met and, if so, whether this Board of County Commissioners must apply the extraordinary-majority standard, rather than a simple majority, when it votes on this appeal.

Because the underlying Planning Commission vote was not unanimous Commissioner Withers dissented, and Commissioners Michael Leon Guerrero and Trujillo each stated on the record that they needed more information or time before voting the composition and sufficiency of that vote informs, but does not itself trigger, the extraordinary-majority requirement that would instead apply to the Board of County Commissioners' own vote on this appeal, if the 20% protest is properly certified.

Appellant respectfully requests that the Board confirm on the record whether a qualifying Section 25 protest was properly certified including the required Certification of Opposition and Petition Invoking the 20% Rule forms, timely filed with the Zone Atlas page and Notice of Decision at least seven days before the hearing as the County's own application packet requires and, if so, vacate any approval reached without the required extraordinary majority.

The appeal Coalition calculates that the 20% rule was met with over 65% qualified signers against this high-volume land-use permit. Due to time constraints in meeting the BCC appeal deadlines, not all properties within 100 feet were approached to sign. It is upon our belief; the percentage would be in the 90% range if more time were allowed.

V. THE SCHOOL AND DAYCARE REMOVAL IMPACT ON APPEAL MERITS

The removal of the school and daycare deserves specific treatment in this appeal because it was presented, implicitly and explicitly, as evidence that the project had been modified to address community concerns.

It was not. ZA Gould's own testimony establishes that the removal was staff-directed after the permit was granted, not applicant-initiated; that the reason was a separate regulatory process requirement, not traffic mitigation; that no updated traffic analysis was submitted for the revised project; that the revised plan was presented late into the hearing with no advance notice to the Appellant; and that the last submitted architectural drawings still show the school and daycare in full detail.

The 60,000-square-foot High Volume Use Complex approved on July 1 is, for all traffic purposes, materially the same project that existed before the revision. The Board's apparent treatment of the school removal as mitigation was not supported by any evidence in the record.

Any claim that later conditions can solve the traffic issue ignores the County witness's own acknowledgment that this corridor presents cumulative and regional constraints beyond simple site-design mitigation. Conditions may refine access details, but they cannot retroactively supply the missing evidence needed for the Board's threshold finding that the use was appropriate to approve at all.

Any claim that the moratorium request exceeds the scope of this appeal does not defeat the appeal itself, because the request for reversal or remand stands on the existing legal and procedural errors in the record. The moratorium request is additional policy relief directed to the Board's legislative authority and does not weaken the merits of the case-specific challenge.

VI. RELIEF REQUESTED

In addition to the case-specific relief requested throughout this appeal brief, Appellant respectfully asks the Board to address the broader corridor/regional area and zoning-policy failures exposed by this case.

The record shows approval of an extreme high-volume conditional use on a constrained failing rural corridor and failing regional area infrastructure without a project-specific Traffic Impact Analysis, screening assessment, or memo analysis of any sort, without current corridor analysis, and in reliance on unwritten practice rather than clear adopted standards yet approving high-volume uses one at a time.

Because these problems are not unique to this single application, the Board should direct both immediate interim protections and permanent code-based reforms, including a neutral temporary moratorium, updated corridor and regional area studies, and draft ordinance amendments governing high-volume institutional, assembly, commercial, conditional-use, and special-use development in Far North Valley residential areas. The County also has legal authority to adopt both temporary and permanent land-use controls.

For the reasons set forth above in this brief, Appellant respectfully requests that the Board of County Commissioners grant this appeal and take the following actions:

1. Reverse or remand the approval.

Reverse the Planning Commission's July 1, 2026, decision denying the appeal and approving the conditional use permit for BA2026-0001 / ZA2026-0024 or remand the application to the Zoning Administrator with instructions consistent with the Board's findings to all valid merits of this appeal.

2. Require a project-specific TIA at the conditional-use stage.

Require that any future consideration of this high-volume conditional use be based on a complete, publicly accessible record that includes a project-specific, engineer-prepared Traffic Impact Analysis and corridor-level traffic engineering analysis, placed in the quasi-judicial record at the conditional-use stage rather than deferred to the building-permit phase, so that the mandatory Section 24 finding of “no undue traffic congestion or hazards” is supported by substantial evidence and to verify if a land-use permit is warranted for approval.

3. Rule on and uphold Appellant's continuance motions.

Rule on Appellant's pending 60-day and 120-day continuance motions and find that proceeding to final action without ruling on those motions — after a day-before site-plan revision and with no Traffic Impact Analysis in the file — denied Appellant and the public a fair opportunity to review evolving evidence and constituted a procedural due-process violation.

4. Address the lack of written clarification on continuance motions and next steps.

Find that the County's handling of Appellant's formal inquiry directing Appellant to a phone call rather than providing written answers, and stating that the Board “does not have to acknowledge” written continuance requests it “did not elect to review” (Hamm) demonstrates a procedural practice inconsistent with quasi-judicial transparency and fairness, and direct that future Boards of Adjustment issue written rulings on continuance motions and written responses to formal procedural inquiries, to be entered into the official case file.

5. Correct the misapplication of RLUIPA.

Find that the RLUIPA warning issued during deliberations that requiring a TIA at the conditional-use stage for this religious institution could expose the County to liability (Director Hamm) was legally incorrect, and clarify that RLUIPA does not prohibit neutral, generally applicable traffic-safety requirements applied evenhandedly to religious and secular assemblies; instead, it requires that such safety standards be enforced equally for all high-volume assemblies.

6. Order written RLUIPA/equal-terms guidance for this case and future cases.

Instruct County counsel to prepare written guidance for future Board and staff hearings confirming that neutral traffic and safety standards must be applied equally to religious and secular assemblies under RLUIPA's equal-terms provisions, and that RLUIPA does not permit lowering or deferring those standards for any applicant.

7. Impose a neutral corridor moratorium on high-volume land-uses.

Recognize that the Alameda-2nd Street NW corridor and regional area is already operating at or beyond its safe functional limits, and consider adopting a temporary moratorium on new high-volume conditional uses along the Alameda-2nd Street corridor and similarly constrained segments of the regional area of the Far Rural North Valley, until updated regional traffic studies and coordinated infrastructure plans demonstrate that the transportation system can safely accommodate additional large-scale assemblies.

Such a moratorium should apply neutrally to all high-volume institutional and commercial conditional uses religious and secular alike and align the County's land-use decisions with its safety ordinances, Rural preservation goals, and federal equal-terms requirements.

8. Direct a corridor-level Transportation Impact Analysis.

Direct Public Works and any necessary partner agencies to initiate a corridor-level Transportation Impact Analysis for Alameda Boulevard and 2nd Street NW and Regional Area, integrating Congestion Management Process congestion rankings, the 2020 Murphy Express traffic study (Packet Pg. 1407-1426), existing industrial and warehouse approvals, and documented river-crossing bottlenecks, and to return those findings to the Board before approving additional high-volume conditional uses in the corridor and regional area.

9. Clarify that TIA deferral is not a substitute for Section 24 findings.

Find that **deferring** Traffic Impact Analyses to the building-permit stage is not authorized by any written rule, ordinance, or published policy, and that such deferral cannot substitute for the mandatory Section 24 finding that a site can be developed without undue traffic hazards; hold that those findings must be made on a complete record at the conditional-use stage.

10. Clarify that informal assurances and future coordination are not substitutes for substantial evidence.

Find that informal assurances of future traffic study, stakeholder coordination, or event-season management including promises to “work with” affected parties at the building-permit stage or during major events such as Balloon Fiesta cannot substitute for the substantial, project-specific traffic and safety evidence Section 24 requires in the quasi-judicial record at the time conditional uses are approved, and direct that future Boards and staff rely on current evidence rather than unwritten, informal commitments when making Section 24 findings.

11. Adopt a formal policy requiring TIAs for high-volume complexes on constrained corridors if not already in policy but is established in the North Valley Area Plan.

Adopt a formal policy or resolution stating that for large assemblies and High Volume Use Complexes on constrained rural corridors — such as the 60,000-gross-square-foot complex proposed here — a project-specific TIA and corridor-capacity analysis are required at the conditional-use stage and may not be deferred to permit-stage review, so that Section 24's traffic-safety findings are always grounded in substantial evidence.

12. Acknowledge cannabis and liquor siting constraints under New Mexico law.

It is understood that the law allows churches/schools to move next to an established liquor/cannabis retail location. For clarity, make an explicit finding that, under New Mexico liquor and cannabis distance-restriction statutes and regulations governing locations near churches and schools, cannabis and liquor establishments, in the situation of a sale, will be legally barred from transferring licenses or locating within prescribed distances of this religious facility once it is sited on the corridor, thereby foreclosing those alternative high-volume commercial uses and concentrating long-term traffic impact in the approved assembly use.

13. Require corrected stamped architectural drawings, quantified attendance projections, and a lower-intensity design alternative.

In addition, require the Zoning Administrator to put the new site plan in the public record and hold a complete full hearing on the new updated site plan.

Require the Applicant to submit amended, stamped architectural drawings that actually remove the school and daycare uses previously represented as withdrawn, and ensure that any future approval or permit issuance is based on plans that match the uses the Board has authorized and are placed in the public record within the applicable deadline timeframe.

In addition, require the Zoning Administrator to enter the revised site plan into the public record and to schedule a complete, fully noticed hearing on the updated application and site plan, with public notice that accurately reflects the revised uses and design (including removal of school/daycare and any proposed one-story, lower-volume alternative), before any further conditional-use approval is considered.

In addition, require the Applicant to submit, as part of any revised application, clear, quantified daily and peak-period attendance projections for the main worship hall and all incidental and accessory uses (including evening programs, youth Quran programs, recreation facilities, and special events), rather than fluid or unbounded estimates, so that project-specific trip generation can be evaluated on a neutral, evidence-based basis.

Those attendance projections should be sufficiently precise to determine whether the proposed complex crosses the Traffic Impact Study warranting threshold published in the Albuquerque/Bernalillo County Development Process Manual, Chapter 7 §7-5(C)(2) and Table 7.5.87 (a project generating more than 100 AM or PM peak-hour trips), which the proposed Friday volume of 560 trips exceeds more than fivefold, and to support a defensible Section 24 finding on traffic safety.

At the hearing and in the written record, the Applicant's own representative described Friday Jumu'ah service attendance in terms of two consecutive services drawing an estimated 100 to 180 total attendees at the existing Menaul location (see BA 2026-001 hearing testimony of Joseph Tahat) and testified that maximum capacity at the new site would reach 600 worshippers with 235 parking spaces provided against 154 required for place of worship (Packet Pg. 1084). The Applicant's own written statement lists 250 worshippers on a typical Friday and 615 worshippers for biannual Eid events (Packet Pg. 1798). At Commissioner Withers' request, Mr. Tahat confirmed that peak attendance could translate to "starting off with 60 cars moving up to 300 cars. But it is going to be under the 200-car ratio. Is that pretty, correct?" (BA 2026-001 hearing testimony), placing the project well above the County's neutral TIA trip-generation triggers before counting incidental uses and population transfer from the existing Menaul mosque.

The Applicant should also be invited to submit, for the Board's consideration, an alternative one-story, lower-volume institutional configuration that materially reduces building height, peak-hour trip generation, and cumulative corridor impact, with corresponding architectural drawings and operating assumptions that fit the existing rural character and low area population of this zone, comparable in scale and local-serving function to the Nativity of the Blessed Virgin Mary Church, which primarily serves the immediate surrounding community.

A more appropriate institutional pattern for this corridor is exemplified by existing churches such as the Nativity of the Blessed Virgin Mary Church and the Mount Carmel Church, which operate at a modest physical scale, 1-story, primarily serve the immediate surrounding community, and do not function as regional high-volume draw facilities; any future institutional use at 9600 2nd Street NW or in the Regional Area should be evaluated against that kind of local-serving model rather than a regional high-volume complex attracting the greater Albuquerque and Surrounding areas in congregation.

14. Implement procedural safeguards for late-submitted site plans.

Establish a Board rule or practice that major revised site plans submitted on the eve of a hearing — such as the day-before revision in this case — trigger an automatic continuance or **separate noticed hearing**, to guarantee appellants and the public a reasonable chance to review, analyze, and respond to new evidence before final action.

In considering alternatives, the Board should recognize that a one-story design for any future institutional use on this site would materially reduce vertical obstructions in an area routinely affected by balloon overflights and occasional landings, improve aviation and retrieval safety, and better align the project with AIBF's request that building height and structural features be evaluated for operational compatibility with Balloon Fiesta seasonal and year-round activities.

15. Confirm that each party bears its own costs or consider fee relief.

To the extent permitted by County ordinances and rules, confirm that each party bears its own costs arising from this appeal, and consider whether the demonstrated procedural and legal errors warrant refunding or waiving appeal filing fees for Appellant.

16. Reserve Appellant's right to submit supplemental authority.

Confirm that Appellant may submit additional supplemental authority or exhibits if

requested by the Board of County Commissioners or if new, relevant technical data becomes available prior to any further BCC hearing on remand or reconsideration.

17. Apply County Ordinance standards to future high-volume cases.

Considering the County's own zoning ordinance provisions and the specific defects in this case, direct the following additional actions grounded in those standards:

- a. Affirm and apply the ordinance's conditional-use findings as mandatory thresholds. Clarify by policy and practice that the conditional-use findings required of the Zoning Administrator that the site can be developed without undue traffic congestion or hazards and that the use will have no adverse effect on the neighborhood or seriously conflict with the character of the area must be supported by substantial evidence in the quasi-judicial record at the time of approval, and cannot be satisfied by deferral to building-permit review or by speculative assumptions.
- b. Direct staff to use the ordinance's listed conditions to address traffic, access, and noise in this use and future high-volume cases. Provide guidance that for high-volume institutional, assembly, and commercial uses on constrained corridors or in residential and Rural Area zones with failing infrastructures, conditions relating to vehicular ingress and egress, open space and buffers, noise, and similar impacts should be treated as **mandatory** tools, **not optional** afterthoughts, and that approvals lacking such conditions will not satisfy the ordinance's public-health and safety protections. Furthermore, allowing high-volume conditional use permits to encroach into residential areas to be prohibited even if only within a foot from commercial use properties.
- c. Align special-use and conditional-use amendment practices with corridor and residential protection. Recognize that the zoning ordinance already treats increased traffic and reduced setbacks adjacent to residential uses as triggers for major amendments and full public process, and direct staff to prepare draft ordinance amendments or overlay standards that extend comparable protections to new high-volume conditional uses and assembly uses proposed on constrained corridors serving residential neighborhoods in the Far North Valley.
- d. Enforce notice and post requirements as written. Direct that future lapses in required notice or sign posting — including failures to maintain signs for the prescribed period or to **disclose revised plans** in time for meaningful review — be treated as grounds for deferral or denial, consistent with the ordinance, rather than as defects that may be cured mid-hearing without full re-notice.
- e. Use protest and appeal provisions to honor organized neighborhood opposition. Clarify that when high-impact conditional uses or special uses are proposed in Rural Area or residential zones and neighboring owners submit written protests meeting ordinance thresholds, the extraordinary-majority vote provisions and appeal rights should be robustly applied, and approvals should include explicit findings addressing neighborhood concerns about traffic, character, and cumulative corridor impacts.

These additional relief requests do not replace the core remedies sought for this case — reversal or remand of the conditional-use approval, rulings on the continuance motions, correction of the revised-site-plan procedural error, and recognition that the Section 24 findings were unsupported — they instead ensure that the County's own ordinance

standards for conditional uses, special-use amendments, notice, and appeals are given effect in future high-volume cases along the Alameda / Second Street corridor and in the Far North Valley.

18. Reject the “fits the character” rationale as a substitute for a cumulative-impact finding. Find that the Zoning Administrator's reliance on an informal determination that the proposed use “fits the character” of the Alameda–2nd Street corridor — without addressing the cumulative traffic and safety impact of adding a high-volume use to an already constrained residential corridor does not satisfy the Section 24 finding that the site can be developed without undue traffic congestion or hazards, and direct that future conditional-use decisions on this corridor and regional area expressly analyze cumulative impact rather than treating each new high-volume approval as compatible by default because similar uses have been approved before. In so doing, the Board should expressly recognize that the County's Rank I ABC Comprehensive Plan designates the subject area as Rural Area (Finding 11, Packet Pg. 922) with a policy favoring “alternatives to urbanization” (Packet Pg. 508), and that this Rank I designation independently confirms the incompatibility of a high-volume regional draw with the area's rural character. (See Exhibit 25.)

19. Confirm compliance with Section 25's extraordinary majority requirement. Determine on the record whether a qualifying written protest under Section 25 was filed by owners of at least 20 percent of the land within 100 feet of the subject property, and if so, find that this Board of County Commissioners must apply the extraordinary-majority standard rather than a simple majority when it votes on this appeal, and that any approval reached without satisfying that standard must be reversed or remanded on this independent procedural ground. Appellant submits the 20% Protest Petition (Exhibit 26) and the Certification of 20% Protest Petition for the Board's and County's verification under Section 25 and NMSA § 3-21-6(C), without representing that the statutory 20% threshold has been satisfied and respectfully requests that the County verify the qualifying ownership and area within 100 feet of the subject property (Excluding right-of-way).

VII. CONCLUSION

The Planning Commission's decision leaves a 60,000-square-foot High Volume Use Complex approved on a failing rural corridor and regional area with no project-specific Traffic Impact Analysis, no corridor-capacity analysis, and no demonstrated mitigation — an ongoing public-safety risk that deferred conditions and permit-stage reviews cannot lawfully resolve.

Commissioner Withers stated on the record: “There is not a way to address the traffic issues... good luck. That really frustrates me.” He fairly voted to grant this appeal.

The road and region do not know how the vote went. 2nd Street NW and the region will absorb every trip generated by this 60,000-square-foot High Volume Use Complex in addition to other approved or pending high-volume uses regardless of the Board's findings.

Deferring the Traffic Impact Analysis for this project does not merely postpone a technical study; it removes the only shared factual basis for evaluating public safety on this already failing rural corridor. Any attempt to characterize these defects as harmless ignores that each one bears directly on the central question whether the Board had a lawful and evidentiary basis to find no undue traffic hazard under Section 24.

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BA2026-0001 (APPEAL APPLICATION & SUPPLEMENTAL BRIEF)
ZBA2026-0001 (ZONING APPEAL DOCKET)

The appeal should be granted.

Respectfully submitted,

Pat Hauser
Appellant / Maria-Diers Neighborhood Association

On behalf of the Appeal Coalition
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EXHIBIT LIST

The following exhibits are referenced throughout this brief. Exhibit numbers correspond to the in-text citations above; source filenames and, where applicable, official county agenda-packet page ranges are provided for verification.

Exhibit	Description	Source Document	Page/Location
Exhibit 1	County Notices of Decision (ZA hearing March 11, 2026, continued to April 8, 2026; Notice of Decision dated April 14, 2026) and Notice of Appeal / Appeal Application (Attachment 3 NODs + Attachment 4 NOA & Appeal Application)	Exhibit-01-County-NODs-and-Appeal.pdf	Packet Pg. 968–1022
Exhibit 2	July 1, 2026, Planning Commission Notice of Decision	Exhibit-02-CPC-NOD.pdf	Full document
Exhibit 3	July 1, 2026, Planning Commission Hearing Agenda	Exhibit-03-CPC-Agenda.pdf	Full document
Exhibit 4	Staff report / attachment package supporting the conditional use application	Exhibit-04-Staff-Report.pdf	Packet Pg. 916–927
Exhibit 5	Original site plan (Sheet A-100, dated January 14, 2026, stamped by Scott C. Anderson) — Attachment 10	Exhibit-05-Site-Plan.pdf	Packet Pg. 1084
Exhibit 6	Applicant's revised site plan (Sheet S-100 et seq., Attachment 12)	Exhibit-06-Revised-Site-Plan.pdf – Not revised – submitted the same site plan as before	Packet Pg. 1121–1125
Exhibit 7	Memo of Understanding memorializing Director Hamm's phone call regarding continuance-motion handling	Exhibit-07-Hamm-MOU.pdf	Full document
Exhibit 8	Appellant's letter to Planning (Karina) requesting continuance	Exhibit-08-Continuance-Letter-Karina.pdf	Full document
Exhibit 9	Director Hamm's written response email to Appellant's follow-up questions	Exhibit-09-Hamm-Response-Email.pdf	Full document
Exhibit 10	Albuquerque International Balloon Fiesta, Inc. comment letter (June 25, 2026) raising independent traffic, safety, and operational-compatibility	Exhibit-10-Balloon-Fiesta-Letter.pdf	Packet Pg. 1820–1822

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	concerns		
Exhibit 11	Certified hearing transcript and analysis of the July 1, 2026, Planning Commission hearing (testimony of Luna, Hamm, Commissioners, and Applicant)	Exhibit-11-Transcription-Analysis.pdf	Full document
Exhibit 12	Preliminary Trip Generation Assessment applying ITE-style methodology to the Applicant's stated attendance and schedule	Exhibit-12-Preliminary-Trip-Generation-Assessment.pdf	Full document
Exhibit 13	ITE Trip Generation Manual, 11th Ed. (ITE) — LUC 562 (Mosque), 4.22 trips/1,000 SF GFA, Fri PM Peak. Cited reference; published manual not reproduced.	Cited reference — not reproduced	Cited reference (11th Ed., LUC 562)
Exhibit 14	Appellant's trip-generation exhibit (≈ 2,164 weekly / 560 Friday trips), calculated using published ITE occupancy rates by activity type — 2.5 persons/vehicle for worship (LUC 560), 1.15 for youth-program drop-off (LUC 520), and 1.5 for recreation (LUC 492) — derived from the Applicant's own attendance figures and the existing Menaul Street mosque's weekly operating schedule	Exhibit-14-Trip-Generation-Analysis.pdf	Full document
Exhibit 15	Trip-generation charts illustrating Exhibit 14's underlying calculations	Exhibit-15-Trip-Generation-Charts.pdf	Full document
Exhibit 16	1993 North Valley Area Plan — corridor transportation policies, Second Street North Transportation Corridor Study description, and Special Use Permit subarea data	Exhibit-16-North-Valley-Area-Plan.pdf	Full Area Plan (pp. 1-238)
Exhibit 17	Bernalillo County Zoning Code of Ordinances Appeal Form and appeal procedure guidance	Exhibit-17-BCC-Appeal-Form.pdf	Full document

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Exhibit 18	Guidance memo from Elvira Lopez on appeal procedure to the Board of County Commissioners	Exhibit-18-Lopez-Appeal-Procedure-Memo.pdf	Full document
Exhibit 19	Affidavit of Terry Brown, traffic engineer (author of the 2020 Murphy Express study, Packet Pg. 1407-1426), swearing to his professional opinion that the proposed 43,000-sf mosque will generate a minimum of 410 AM / 1,300 PM occurrences and that the corridor was already at Level of Service F	Brown-Affidavit-EXHIBIT-19.pdf	Murphy study Packet Pg. 1407–1426; pending signature + notarization
Exhibit 20	Appellant's email correspondence with County planner Karina Peggau (July 6-11, 2026) documenting that the applicant's day-before revised site plan was never placed on the public record or made accessible — supporting the procedural due-process and late-site-plan grounds	Exhibit-20-Site-Plan-Access-Emails.pdf	Full document
Exhibit 21	Bernalillo County Advanced Data Viewer GIS map showing the subject site is in the 'Rural' land-use area (not urban), consistent with Finding 11 and the 1993 North Valley Area Plan	Exhibit-21-Rural-Area-GIS-Map.pdf	Full document
Exhibit 22	City of Albuquerque jurisdiction boundary map confirming the subject site is 'Outside City Limits' (unincorporated Bernalillo County), supporting the population-transfer / jurisdiction grounds	Exhibit-22-Outside-City-Limits-Map.pdf	Full document
Exhibit 23	Applicant's written statement (updated for July 1, 2026, hearing; ~43,288 SF first-floor footprint)	Exhibit-23-Written-Statement.pdf	Packet Pg. 1800–1802
Exhibit 24	Applicant's "Dear	Exhibit-24-Upgrade-Letter.pdf	Full document

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	Neighbor” upgrade letter (postmarked Apr. 6, 2026)		
Exhibit 25	ABC Comprehensive Plan (Rank I) — Rural Area designation & “alternatives to urbanization” policy	Exhibit-25-Comprehensive-Plan.pdf	Packet Pg. 922; policy at Packet Pg. 508
Exhibit 26	20% Protest Petition (Rule 7 / Section 25) 25 neighboring-owner signatures	Exhibit-26-Protest-Petition.pdf	Full document
Certification	Certification of 20% Protest Petition (NMSA § 3-21-6(C)) sworn, notarized cover sheet to Exhibit 26 (not a numbered exhibit)	Certification-of-20-Percent-Protest-Petition.pdf	Full document